

24AVCV00233 24AVCV00233

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Case Number: 24AVCV00233 Hearing Date: September 3, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

BIRDIE STRICKLAND, an individual,

Plaintiff,

v.

YEALAND LLC; SUJAN CUI; and SUSAN CUI,

Defendants.

Case Number 24AVCV00233

[TENTATIVE]

RULING ON MOTIONS

Date of Hearing: September 3, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a personal injury case arising from uninhabitable and unsafe conditions of a property rented by Plaintiff Birdie Strickland (Plaintiff). Plaintiff presently moves the Court for leave to file a first amended complaint (FAC) and to continue trial, which is set to commence on October 9, 2026.

On February 28, 2024, Plaintiff filed a complaint against Defendants Yealand LLC (Yealand), Sujan Cui, and Susan Cui (collectively Defendants), asserting causes of action for property damage and personal injury.

On May 1, 2025, Plaintiff filed a first amended complaint (FAC) against Yealand, Wei Huang (Huang), Suwen Cui (Cui), and DOES 1 through 25, asserting six causes of action for (1) negligence, (2) breach of implied warranty of habitability, (3) violation of Civil Code section 1942.4 for failure to repair habitability issues, (4) constructive eviction, (5) conversion, and (6) intentional infliction of emotional distress. Plaintiff alleges that in 2017, she began renting the property located at 1114 E. Lancaster Blvd., Lancaster CA 93535 (the Property), owned by Huang and Cui and managed by Yealand. (Compl., ¶¶ 6-7, 11.) On February 22, 2023, Plaintiff states the roof of the Property collapsed and destroyed the living room and was subsequently declared uninhabitable. (Compl., ¶¶ 12-13.) Plaintiff alleges that prior to the roof's collapse, Plaintiff requested numerous times that Defendants make necessary repairs on the Property, but Defendants failed to respond or undertake repairs or maintenance. (Compl., ¶ 14.)

On May 27, 2025, Yealand filed a demurrer to the fifth and sixth causes of action in the FAC, which was sustained without leave to amend. Yealand also filed a motion to strike punitive damages from the FAC, which was granted.

On September 2, 2025, Yealand filed an answer.

On February 10, 2026, the Court granted Yealand's motion to continue the trial date and trial was continued to June 26, 2026.

On June 26, 2026, the Court issued an order of dismissal as to Cui and Huang and continued trial to October 9, 2026.

On July 16 and 27, 2026, Plaintiff filed the moving papers for her motion to continue the trial date.

On July 28 and 29, 2026, Plaintiff filed the moving papers for her motion for leave to file an FAC.

On August 24, 2026, Yealand filed oppositions to both motions.

No reply has been filed.

II. Preliminary Procedural Issues

Service of Plaintiff's Motions – Defense counsel contends their untimely oppositions are the result of Plaintiff's failure to serve counsel with either motion. (Opp., p. 2:2-5; Babaian Decl., ¶¶ 2-5.) The Court notes that Plaintiff's proof of service regarding the motion to continue trial does not list the service addresses provided by Defense counsel. Defense counsel also asserts that although her later proof of electronic service, filed on August 17, 2026 regarding her motion for leave to file an FAC asserts Defense counsel was served, counsel declares that they only learned of the motions from a review of the docket and neither Counsel nor anyone in his office was served. (Babaian Decl., ¶¶ 4-5.)

Plaintiff has filed no reply addressing Yealand's contention that its counsel was not properly served. Moving papers must be filed and served at least 16 court days before the hearing on the motion. (Code Civ. Proc., § 1005, subd. (b).) Failure to serve a motion on opposing counsel is grounds alone for denial. However, in the interests of adjudicating the matter and in light of the substantive oppositions filed by Yealand, the Court will exercise its discretion to rule on the motions.

III. Legal Standard

Standard for Leave to Amend – Standard for Leave to File an Amended Complaint – Code of Civil Procedure section 473, subdivision (a)(1) provides, in relevant part: “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code.” This discretion should be exercised liberally in favor of amendments, for “judicial policy favors resolution of all disputed matters in the same lawsuit.” (Kittredge Sports Co. v. Superior Court (1989) 213 Cal.App.3d 1045, 1047.)

“The trial court has discretion to permit or deny the amendment of the complaint, but instances justifying the court's denial of leave to amend are rare.” (Armenta ex rel. City of Burbank v. Mueller Co. (2006) 142 Cal.App.4th 636, 642.) However, “[a]lthough courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial [citation], this policy should be applied only ‘[w]here no prejudice is shown to the adverse party . . .’ [Citation.] A different result is indicated ‘[w]here inexcusable delay and probable prejudice to the opposing party’ is shown. [Citation.]” (Magpali v. Farmers Group, Inc. (1996) 48 Cal.App.4th 471, 487.) “If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend.” (Morgan v. Superior Court of Los Angeles County (1959) 172 Cal.App.2d 527, 530.) Prejudice includes “delay in trial, loss of critical evidence, or added costs of preparation.” (Solit v. Tokai Bank, Ltd. New York Branch (1999) 68 Cal.App.4th 1435, 1448.)

Under rule 3.1324, subdivision (a) of the California Rules of Court, a motion to amend a pleading shall (1) include a copy of the proposed amendment or amended pleading, which must be serially numbered to differentiate it from previous pleadings or amendments; (2) state what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph and line number, the deleted allegations are located; and (3) state what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located. (Cal. Rules of Court, rule 3.1324(a).)

Under subdivision (b), a separate declaration must accompany the motion and must specify (1) the effect of the amendment; (2) why the amendment is necessary and proper; (3) when the facts giving rise to the amended allegations were discovered; and (4) the reasons why the request for amendment was not made earlier. (Id. at rule 3.1324 (b).)

Request for Trial Continuance – The dates assigned for a trial are firm, and all parties and counsel must regard the date set for trial as certain. (Cal. Rules of Court, rule 3.1332(a).) A party seeking a continuance of a date set for trial must make the request by noticed motion with supporting declarations as soon as reasonably practical once the necessity for continuance is discovered. (Cal. Rules of Court, rule 3.1332(b).) Continuances of trial are disfavored, but may be granted only on an affirmative showing of good cause requiring the continuance, including unavailability of witnesses, parties, or counsel, substitution of trial counsel, the addition of a new party under certain circumstances, a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts, or a significant, unanticipated change in the status of the case as a result of which the case is not ready for trial. (Cal. Rules of Court, rule 3.1332(c).) The court must consider all relevant facts and circumstances relevant to the determination before ruling on the motion, including the proximity of the trial date, whether there was any previous continuance, extension of time, or delay of trial due to any party, the length of continuance requested, the availability of alternative means to address the problem giving rise to the motion, prejudice to the parties or witnesses, the court's calendar, whether all parties have agreed to a continuance, and whether the

interests of justice are best served by a continuance, by trial of the matter, or by imposing conditions on the condition. (Cal. Rules of Court, rule 3.1332(d).)

IV. Discussion

Application – Plaintiff moves for leave to file an FAC and to continue trial.

a. Leave to File an Amended Complaint

Plaintiff requests leave to file an FAC to clarify her causes of action in greater specificity and conform the pleading to the facts and evidence obtained throughout litigation. Plaintiff asserts the operative pleading does not fully describe the factual allegations or clearly identify all legal theories she believes are supported by the evidence. (Plaintiff Decl., ¶ 4.)

As a preliminary matter, Plaintiff has already filed an FAC. Plaintiff appears to seek leave to file a second amended complaint on the eve of trial. Plaintiff's motion does not conform with Rule 3.1324. Plaintiff does not include a copy of a proposed SAC and does not provide any information as to what additional facts, theories, parties, or damages she intends to plead. Plaintiff does not state when the facts she seeks to add were discovered, what those facts are, or why she could not amend the complaint sooner.

The Court has no information as to what amendments Plaintiff seeks to make to the operative complaint. Plaintiff's motion is DENIED.

b. Motion to Continue Trial

Plaintiff requests a continuance of the trial date to a date after October 7, 2026 to allow time for her to file a motion for summary judgment with sufficient statutory notice prior to trial. (Motion, p. 2:8-18.) Plaintiff also declares that she is seeking legal counsel to represent her. (Plaintiff Decl., ¶ 4.)

The Court finds that no good cause exists to continue the date presently set for trial. Plaintiff has not set forth any justification for her failure to timely move for summary judgment and to date, no motion has been filed. Plaintiff has also not established any unavailability of witnesses, parties, or counsel, the addition of a new party, a party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts, or a significant, unanticipated change in the status of the case as a result of which the case is not ready for trial. While Plaintiff asserts she is working to obtain counsel, Plaintiff has not established that counsel has been retained. Plaintiff has provided no timeline for the requested continuance, and the Court finds that in light of two prior trial continuances, the proximity of the trial date, Plaintiff's lack of diligence in requesting a continuance, particularly where trial was initially scheduled for June, and Yealand's objection to a continuance, further continuance of the trial is not warranted.

Plaintiff's motion to continue trial is DENIED.

V. Conclusion

Plaintiff Birdie Strickland's Motion to Continue Trial is DENIED.

Plaintiff Birdie Strickland's Motions for Leave to File a First Amended Complaint is DENIED.